Ansar M.C vs State Of Kerala on 2 June, 2021

Author: V Raja Vijayaraghavan

Bench: V Raja Vijayaraghavan

BAIL APPL. NO. 784 OF 2021 1

IN THE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT
THE HONOURABLE MR. JUSTICE RAJA VIJAYARAGHAVAN V
WEDNESDAY, THE 2ND DAY OF JUNE 2021 / 12TH JYAISHTA, 1943
BAIL APPL. NO. 784 OF 2021
CRIME NO.606/2019 OF THE CHEVAYUR POLICE STATION, KOZHIKODE
PETITIONER/ACCUSED:

ANSAR M.C
0

AGED 34 YEARS
SON OF MUHAMMED, MAYAGOT HOUSE, POOVATTUPARAMBA, KOZHIKODE.,
PIN - 673008

BY ADV E.A.HARIS

RESPONDENT/S:

STATE OF KERALA
0

REPRESENTED BY PUBLIC PROSECUTOR,HIGH COURT OF KERALA
ERNAKULAM, PIN - 682031.

BY ADV PUBLIC PROSECUTOR SMT SREEJA V

THIS BAIL APPLICATION HAVING COME UP FOR ADMISSION ON 02.06.2021, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

ORDER

The above captioned application seeking anticipatory bail has been filed under Section 438 of the Code of Criminal Procedure ("'Code" for short) by the 3rd accused in Crime No.606 of 2019 of the Chevayur Police Station registered under Sections 326, 307 r/w 120B of the IPC.

2. On 12.10.2019, the taxi auto rickshaw owned by a certain Shaji, the injured in the instant crime, was taken on hire by an individual. When the autorickshaw reached Thayyil Thazham, two persons who were following the autorickshaw on a bike, intercepted the vehicle and attacked the driver with swords causing injuries. The passenger is also alleged to have attacked the driver with a knuckle duster. The injured person was taken to the hospital by a passerby. Initially no one was aware of the identity of the accused and hence exact details of the assailants were not furnished. Only two persons were arrayed as accused in the FIR. In the Course of investigation it was revealed that the petitioner was the person who had hired the autorickshaw. A report was submitted arraying the petitioner as the third accused.

3. Sri.E.A.Haris, the learned counsel appearing for the petitioner submitted that the petitioner had earlier approached the Court of Session and by order dated 07.08.2020, he was granted an order of pre arrest bail. The said order was set aside by this Court by Annexure-1 order in Crl.M.C.No.4051 of 2020. The petitioner thereafter approached the Court of Session and filed another application seeking pre arrest bail and the same was dismissed by Annexure-2 order. The petitioner would contend that in the earlier records there was no mention about the presence of the petitioner or the fact that the petitioner herein was armed with a weapon. The only allegation was that accused nos.1 and 2 were armed with weapons and had attacked the victim causing injuries. He would then submit that the crime was registered in the year 2019 and the accused nos.1, 2, 4 and 5 have already surrendered and they were later released on bail. According to the learned counsel the victim has modified his statement and it is in the said circumstances that now serious accusations are levelled against the petitioner herein.

4. The learned Public Prosecutor has very strenuously opposed the prayer. She would refer to the medical records and would contend that very grave injuries were inflicted by the accused. It is submitted that the weapon used by the petitioner has not been recovered till date and the investigation insofar as the petitioner is concerned is not completed.

5. I have carefully considered the submissions advanced and have carefully evaluated the materials. While considering the prayer for grant of anticipatory bail, this Court has to strike a balance and it has to be ensured that no prejudice should be caused to the free, fair and full investigation. At the same time harassment, humiliation and unjustified detention of the accused will also have to be avoided. The wound certificates prima facie show that serious injuries were sustained by the victim at the hands of the accused.There are materials which link the petitioner with the crime. At this stage it cannot be said that the allegations against the petitioner are frivolous or that he has been falsely implicated. A detailed probe into the veracity of the allegations at this point of time is not warranted. Suffice to say, considering the nature of the allegations,the role assigned to the applicant

and the severity of the injuries inflicted, and the stage of investigation, the petitioner has not made out a case for grant of anticipatory bail

6. At this stage Sri. Haris, the learned counsel, submits that the applicant is ready to cooperate with the investigation. I direct the petitioner to surrender before the Investigating officer forthwith. After interrogation, he shall be produced before the Court having jurisdiction. If an application for regular bail is preferred, the same shall be considered and orders shall be passed expeditiously and on its merits.

This application is dismissed.

Sd/-

RAJA VIJAYARAGHAVAN V JUDGE DSV/2.6.21